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An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Roxburgh County Council (Ale Water).

[17th May 1956.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Roxburgh County Council (Ale Water) Order Confirmation Act 1956.

SCHEDULE

ROXBURGH COUNTY COUNCIL (ALE WATER)

Provisional Order to exempt the county council of the county of Roxburgh from certain provisions of the Salmon Fisheries (Scotland) Act 1868 to repeal the provisions of the Kelso Water Order 1911 relating to the supply of water to the Kelso District Committee and for other purposes.

WHEREAS the county council of the county of Roxburgh (hereinafter referred to as "the County Council") are the local authority for the county of Roxburgh (hereinafter referred to as "the county") and are entrusted with the duties of providing (inter alia) a sufficient supply of water within their district:

And whereas by the Roxburgh County Council (Alemoor Loch) Water Order 1955 the County Council are authorised to impound and take by means of a dam water from Alemoor Loch in the parish of Robertson in the county:

And whereas it is expedient that in connection with the construction of the dam for impounding or taking the said water the County Council should be relieved of the provisions of paragraph 6 of Schedule G to the Salmon Fisheries (Scotland) Act 1868:

And whereas the provost magistrates and councillors of the burgh of Kelso have agreed under the powers conferred on them by the Water (Scotland) Act 1946 to dispose to the County Council a part of their existing water undertaking which lies in the landward area of the county and it is therefore expedient that the provisions of the Kelso Water Order 1911 relating to the supply of water to the Kelso District Committee (whose functions are now vested in the County Council) should when the aforementioned disposition is completed be repealed:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the Roxburgh County Council (Ale Water) Order 1956.

Commencement of Order.

2. This Order shall commence and have effect on the date of the passing of the Act confirming this Order.

County Council to be relieved of obligation under Salmon Fisheries (Scotland) Act 1868.

3. Notwithstanding the provisions contained in paragraph 6 of Schedule G to the Salmon Fisheries (Scotland) Act 1868 the County Council shall not be under any obligation to provide a fish pass or ladder at the reservoir or dam to be constructed for the impounding or taking of water from Alemoor Loch authorised by the Roxburgh County Council (Alemoor Loch) Water Order 1955.

4.—(1) As from the appointed day section 45 of the Kelso Water Repeal Order 1911 is hereby repealed.

(2) For the purposes of this section the appointed day means the day on which the hereinbefore recited disposition by the provost magistrates and councillors of the burgh of Kelso of part of their water undertaking in the landward area of the county to the County Council is completed.

5. The costs charges and expenses preliminary to and of and Costs of Order incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the County Council out of moneys raised by means of a rate leviable by the County Council on all lands and heritages in the landward part of the county or out of moneys to be borrowed by them for the impounding or taking of water authorised by the Roxburgh County Council (Alemoor Loch) Water Order 1955.

Table of Statutes referred to in this Act

Short title	Session and chapter
Salmon Fisheries (Scotland) Act 1868	31 & 32 Vict. c. 123.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Water (Scotland) Act 1946	9 & 10 Geo. 6 c. 42.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

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(Ale Water) Order Confirmation Act, 1956

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN

(37358)